

Vineeta Singh v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 11 December 2023 · 2023:AHC:234089-DB · Writ-C No. 33714 of 2023 · **Relegated to Executive Engineer under clause 6.5; writ disposed**

HEADNOTE

Writ against an electricity bill disposed of without a merits inquiry. Clause 6.5 of the Electricity Supply Code, 2005 was accepted as an efficacious alternative remedy. If the petitioner moved the concerned Executive Engineer within ten days for correction of the bills, that application was to be considered within one month, and coercive action was stayed for two months or until the decision, whichever was earlier. No restoration order was made because the department stated that supply had already been restored.

FACTUAL SUMMARY

Vineeta Singh filed Writ-C No. 33714 of 2023 in the Allahabad High Court against an electricity bill served on her, impleading the State of U.P. and two others. The department's counsel was absent on 6 November 2023 despite notice; the Court recorded Sri Baleshwar Chaturvedi for respondents 2 and 3 and adjourned the petition, and adjourned it again on 8 and 22 November. On 11 December 2023 her counsel also sought restoration of supply. Counsel for the electricity department stated that the connection had already been restored.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Bill correction before the Executive Engineer as alternate remedy

HOLDING

A consumer aggrieved by an electricity bill has an efficacious alternative remedy under clause 6.5 of the Electricity Supply Code, 2005. Without entering the merits, the Court directed that if the petitioner approaches the concerned Executive Engineer within ten days for correction of her bills, the application be looked into within one month, and that no coercive action be taken for two months or until that decision, whichever is earlier. The writ was disposed of. Restoration was not ordered because the department stated that the connection had already been restored. ¶ 11.12.2023

PRINCIPLE TAGS

article-226-alternate-remedy-up-supply-code-6.5 The writ against the bill was disposed of without examining the merits, clause 6.5 being treated as an efficacious alternative remedy. ¶ 11.12.2023

clause-6.5-representation-executive-engineer The petitioner was permitted to apply to the concerned Executive Engineer within ten days for correction of the bills, the application to be considered within one month. ¶ 11.12.2023

para-6.5-objection-before-coercive-recovery Coercive action was stayed for two months or until the Executive Engineer's decision on the correction application, whichever was earlier. ¶ 11.12.2023

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

The Court declined to go into the merits and left correction to the Executive Engineer under clause 6.5. ¶ 11.12.2023

NOT DECIDED — WHETHER A RESTORATION ORDER WAS REQUIRED

Departmental counsel stated that the connection had already been restored, and the Court passed no further order on supply. ¶ 11.12.2023

